

TERMS OF SERVICE

Last Revised on ~~7-9-2020~~

Welcome to the Terms of Service ~~(“these “Terms”)~~ for the website, *BlackacreTeddyBears.com* ~~(“the “Website”)~~, operated on behalf of *Blackacre Teddy Bears, LLC* (“Company”, “we” or “us”). The Website and any content, tools, features and functionality offered on or through our Website are collectively referred to as the “Services”.

~~WHO MAY USE THE SERVICES~~

~~These Terms govern your access to and use of the Services. Please read these Terms carefully, as they include important information about your legal rights. By accessing and/or using the Services, you are agreeing to these Terms. If you do not understand or agree to these Terms, please do not use the Services.~~

~~For purposes of these Terms, “you” and “your” means you as the user of the Services. If you use the Services on behalf of a company or other entity then “you” includes you and that entity, and you represent and warrant that (a) you are an authorized representative of the entity with the authority to bind the entity to these Terms, and (b) you agree to these Terms on the entity’s behalf.~~

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1. Who May Use the Services

You must be ~~eight~~ (eighteen (18)) years of age or older ~~[and reside in the State~~ United States ~~or any of Alaska’s territories~~ to use the Services.]. By using the Services, you represent and warrant that you meet these requirements.

2. LOCATION OF OUR PRIVACY POLICY

~~2.1 Privacy Policy. We take your privacy very seriously and will do everything we can to keep your identity safe.~~

~~RIGHTS WE GRANT YOU~~

~~Our Privacy Policy describes how we handle the information you provide to us when you use the Services. For an explanation of our privacy practices, please visit our Privacy Policy located at [●].~~

3. Rights We Grant You

~~3.1~~ Right to Use Services. We hereby permit you to use the Services for your personal non-commercial use only, provided that you comply with these Terms in connection with all such use. If any software, content or other materials owned or controlled by us are distributed to you as part of your use of the Services, we hereby grant you, a personal, non-assignable, non-sublicensable, non-transferrable, and non-exclusive right and license to access and display such software, content and materials provided to you as part of the

Services, in each case for the sole purpose of enabling you to use the Services as permitted by these Terms. Your access and use of the Services may be interrupted from time to time for any of several reasons, including, without limitation, the malfunction of equipment, periodic updating, maintenance or repair of the Service or other actions that ~~the~~ Company, in its sole discretion, may elect to take.

~~3.2 Your Behavior. You will not copy any pictures on the Website without the Company's prior written consent.~~

OWNERSHIP AND CONTENT

~~3.2 4.1—Restrictions On Your Use of the Services. You may not do any of the following in connection with your use of the Services, unless applicable laws or regulations prohibit these restrictions or you have our written permission to do so:~~

- ~~(a) download, modify, copy, distribute, transmit, display, perform, reproduce, duplicate, publish, license, create derivative works from, or offer for sale any information contained on, or obtained from or through, the Services, except for temporary files that are automatically cached by your web browser for display purposes, or as otherwise expressly permitted in these Terms;~~
- ~~(b) duplicate, decompile, reverse engineer, disassemble or decode the Services (including any underlying idea or algorithm), or attempt to do any of the same;~~
- ~~(c) use, reproduce or remove any copyright, trademark, service mark, trade name, slogan, logo, image, or other proprietary notation displayed on or through the Services;~~
- ~~(d) use, automation software (bots), hacks, modifications (mods) or any other unauthorized third-party software designed to modify the Services;~~
- ~~(e) exploit the Services for any commercial purpose, including without limitation communicating or facilitating any commercial advertisement or solicitation;~~
- ~~(f) access or use the Services in any manner that could disable, overburden, damage, disrupt or impair the Services or interfere with any other party's access to or use of the Services or use any device, software or routine that causes the same;~~
- ~~(g) attempt to gain unauthorized access to, interfere with, damage or disrupt the Services, or the computer systems or networks connected to the Services;~~
- ~~(h) circumvent, remove, alter, deactivate, degrade or thwart any technological measure or content protections of the Services;~~
- ~~(i) use any robot, spider, crawlers, scraper, or other automatic device, process, software or queries that intercepts, "mines," scrapes, extracts, or otherwise accesses the Services to monitor, extract, copy or collect information or data from or through the Services, or engage in any manual process to do the same;~~

- (j) introduce any viruses, trojan horses, worms, logic bombs or other materials that are malicious or technologically harmful into our systems;
- (k) submit, transmit, display, perform, post or store any content that is inaccurate, unlawful, defamatory, obscene, lewd, lascivious, filthy, excessively violent, pornographic, invasive of privacy or publicity rights, harassing, threatening, abusive, inflammatory, harmful, hateful, cruel or insensitive, deceptive, or otherwise objectionable, use the Services for illegal, harassing, bullying, unethical or disruptive purposes, or otherwise use the Services in a manner that is obscene, lewd, lascivious, filthy, excessively violent, harassing, harmful, hateful, cruel or insensitive, deceptive, threatening, abusive, inflammatory, pornographic, inciting, organizing, promoting or facilitating violence or criminal or harmful activities, defamatory, obscene or otherwise objectionable;
- (l) violate any applicable law or regulation in connection with your access to or use of the Services; or
- (m) access or use the Services in any way not expressly permitted by these Terms.

4. Ownership of the Services and Content

4.1 Ownership of the Services. The Services, including their “look and feel” (e.g., text, graphics, images, logos), proprietary content, information and other materials, are protected under copyright, trademark and other intellectual property laws. You agree that the Company owns most of the content it uses for the and/or its licensors own all right, title and interest in and to the Services (including any and all intellectual property rights therein) and you agree not to take any action(s) inconsistent with such ownership interests. We and our licensors reserve all rights in connection with the Services and its content (other than Your Content), including, without limitation, the exclusive right to create derivative works.

~~Services. The Company may not create derivative works from content you post on the Website.~~

4.2 4.2 Ownership of Trademarks. The Company’s name, the Company’s logo and all related names, logos, product and service names, designs and slogans are trademarks of the Company or its affiliates or licensors. Other names, logos, product and service names, designs and slogans that appear on the Services are the property of their respective owners, who may or may not be affiliated with, connected to, or sponsored by us.

4.3 4.3 Ownership of Feedback. We welcome feedback, comments and suggestions for improvements to the Services (“Feedback”). ~~We~~You acknowledge and expressly agree that any contribution of Feedback does not and will pay not give or grant you any right, title or interest in the Services or in any such Feedback. All Feedback becomes the sole and exclusive property of the Company, and the Company may use and disclose Feedback in any manner and for any purpose whatsoever without further notice or compensation to you and without retention by you of any proprietary or other right or claim. You hereby assign to the Company any and all Feedback you right, title and interest (including, but not limited to, any patent, copyright, trade secret, trademark, show-how, know-how, moral rights and

any and all other intellectual property right) that you may have in and to any and all Feedback.

4.4 Your Content License Grant. In connection with your use of the Services, you may be able to post, upload, or submit content to be made available through the Services (“Your Content”). In order to operate the Service, we must obtain from you certain license rights in Your Content so that actions we take in operating the Service are not considered legal violations. Accordingly, by using the Service and uploading Your Content, you grant us a license to access, use, host, cache, store, reproduce, transmit, display, publish, distribute, and modify (for technical purposes, e.g., making sure content is viewable on smartphones as well as computers and other devices) Your Content but solely as required to be able to operate and provide us that improves the Website, the Services. You agree that these rights and licenses are royalty-free, transferable, sub-licensable, worldwide and irrevocable (for so long as Your Content is stored with us), and include a right for us to make Your Content available to, and pass these rights along to, others with whom we have contractual relationships related to the provision of the Services, solely for the purpose of providing such Services, and to otherwise permit access to or disclose Your Content to third parties if we determine such access is necessary to comply with our legal obligations. As part of the foregoing license grant you agree that the other users of the Services shall have the right to comment on and/or tag Your Content and/or to use, publish, display, modify or include a copy of Your Content as part of their own use of the Services; except that the foregoing shall not apply to any of Your Content that you post privately for non-public display on the Services. To the fullest extent permitted by applicable law, the Company reserves the right, and has absolute discretion, to remove, screen, edit, or delete any of Your Content at any time, for any reason, and without notice. By posting or submitting Your Content through the Services, you represent and warrant that you have, or have obtained, all rights, licenses, consents, permissions, power and/or authority necessary to grant the rights granted herein for Your Content. You agree that Your Content will not contain material subject to copyright or other proprietary rights, unless you have the necessary permission or are otherwise legally entitled to post the material and to grant us the license described above.

THIRD-PARTY SERVICES AND MATERIALS

5. Third-Party Services and Materials

Use of Third-Party Materials in the Services. Certain Services may display, include or make

5.1 5.1 available content, data, information, applications or materials from third parties (“Third-Party Materials”) or provide links to certain third-party websites. TheBy using the Services, you acknowledge and agree that the Company is not responsible for examining or evaluating the content, accuracy, completeness, availability, timeliness, validity, copyright compliance, legality, decency, quality or any other aspect of such Third-Party Materials or websites. We do not warrant or endorse and do not assume and will not have any liability or responsibility to you or any other person for any third-party services, Third-Party Materials, or third-party websites, or for any other materials, products, or services of third parties. Third-Party Materials and links to other websites are provided solely as a convenience to you.

WARRANTY, LIMITATIONS OF LIABILITY AND INDEMNIFICATION

Warranty. The Company warrants that the Services will be performed in a workmanlike manner consistent with the prevailing standard of care. The Company represents and warrants to you that it has the power and authority to perform the Services.

6. Disclaimers, Limitations of Liability, and Indemnification

6.1 Disclaimers.

- 6.1.1 Your access to and use of the Services are at your own risk. You understand and agree that the Services are provided to you on an “AS IS” and “AS AVAILABLE” basis. Without limiting the foregoing, to the maximum extent permitted under applicable law, the Company, its parents, affiliates, related companies, officers, directors, employees, agents, representatives, partners and licensors (the “**the Company Entities**”) DISCLAIM ALL WARRANTIES AND CONDITIONS, WHETHER EXPRESS OR IMPLIED, OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT. The Company Entities make no warranty or representation and disclaim all responsibility and liability for: (a) the completeness, accuracy, availability, timeliness, security or reliability of the Services; (b) any harm to your computer system, loss of data, or other harm that results from your access to or use of the Services; (c) the operation or compatibility with any other application or any particular system or device; and (d) whether the Services will meet your requirements or be available on an uninterrupted, secure or error-free basis; and (e) the deletion of, or the failure to store or transmit, Your Content and other communications maintained by the Services. No advice or information, whether oral or written, obtained from the Company Entities or through the Services, will create any warranty or representation not expressly made herein.
- 6.1.2 THE LAWS OF CERTAIN JURISDICTIONS, INCLUDING THE STATE OF NEW JERSEY, DO NOT ALLOW LIMITATIONS ON IMPLIED WARRANTIES OR THE EXCLUSION OR LIMITATION OF CERTAIN DAMAGES AS SET FORTH IN SECTION [●] BELOW. IF THESE LAWS APPLY TO YOU, SOME OR ALL OF THE ABOVE DISCLAIMERS, EXCLUSIONS, OR LIMITATIONS MAY NOT APPLY TO YOU, AND YOU MAY HAVE ADDITIONAL RIGHTS.
- 6.1.3 THE COMPANY ENTITIES TAKE NO RESPONSIBILITY AND ASSUME NO LIABILITY FOR ANY CONTENT THAT YOU, ANOTHER USER, OR A THIRD PARTY CREATES, UPLOADS, POSTS, SENDS, RECEIVES, OR STORES ON OR THROUGH OUR SERVICES.
- 6.1.4 YOU UNDERSTAND AND AGREE THAT YOU MAY BE EXPOSED TO CONTENT THAT MIGHT BE OFFENSIVE, ILLEGAL, MISLEADING, OR OTHERWISE INAPPROPRIATE, NONE OF WHICH THE COMPANY ENTITIES WILL BE RESPONSIBLE FOR.

Limitations of Liability. TO THE EXTENT NOT PROHIBITED BY LAW, YOU AGREE THAT IN NO EVENT WILL THE COMPANY ENTITIES BE LIABLE (A) FOR DAMAGES OF ANY KIND, INCLUDING INDIRECT SPECIAL, EXEMPLARY, INCIDENTAL, CONSEQUENTIAL OR PUNITIVE DAMAGES

(INCLUDING, BUT NOT LIMITED TO, PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES, LOSS OF USE, DATA OR PROFITS, BUSINESS INTERRUPTION OR ANY OTHER DAMAGES OR LOSSES, ARISING OUT OF OR RELATED TO YOUR USE OR INABILITY TO USE THE SERVICES), HOWEVER CAUSED AND UNDER ANY THEORY OF LIABILITY, WHETHER UNDER THESE TERMS OR OTHERWISE ARISING IN ANY WAY IN CONNECTION WITH THE SERVICES OR THESE TERMS AND WHETHER IN CONTRACT, STRICT LIABILITY OR TORT (INCLUDING NEGLIGENCE OR OTHERWISE) EVEN IF THE COMPANY ENTITIES HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGE, OR (B) FOR ANY OTHER CLAIM, DEMAND OR DAMAGES WHATSOEVER RESULTING FROM OR ARISING OUT OF OR IN CONNECTION WITH THESE TERMS OR THE DELIVERY, USE OR PERFORMANCE OF THE SERVICES. THE COMPANY ENTITIES' TOTAL LIABILITY TO ~~THE COMPANY~~ YOU FOR ANY

~~6.2~~ DAMAGES FINALLY AWARDED SHALL NOT EXCEED THE GREATER OF ONE ~~MILLION~~HUNDRED DOLLARS (\$100,~~000~~.00), OR THE AMOUNT YOU PAID THE COMPANY

~~6.2~~ ENTITIES, IF ANY, IN THE PAST SIX (6) MONTHS FOR THE SERVICES (OR OFFERINGS PURCHASED ON THE SERVICES) GIVING RISE TO THE CLAIM. THE FOREGOING LIMITATIONS WILL APPLY EVEN IF THE ABOVE--STATED REMEDY FAILS OF ITS ESSENTIAL PURPOSE.

Indemnification. By entering into these Terms and accessing or using the Services, you agree that

~~6.3~~

~~6.3~~ you shall defend, indemnify and hold the Company Entities harmless from and against any and all claims, costs, damages, losses, liabilities and expenses (including attorneys' fees and costs) incurred by the Company Entities arising out of or in connection with ~~you stealing any picture from this Website; (a) your violation or breach of any term of these Terms or any applicable law or regulation; (b) your violation of any rights of any third party; (c) your misuse of the Services; (d) your negligence or wilful misconduct. If you are obligated to indemnify any Company Entity hereunder, then you agree that Company (or, at its discretion, the applicable Company Entity) will have the right, in its sole discretion, to control any action or proceeding and to determine whether Company wishes to settle, and if so, on what terms, and you agree to fully cooperate with Company in the defences or settlement of such claim.~~

~~ADDITIONAL PROVISIONS~~

~~7.1 SMS Messaging and Phone Calls. We will not text or call you without your prior written consent.~~

~~7.2 Updating These Terms. We will only update these Terms with the written consent of over two-thirds (2/3) of the users of the Services. Every change to these Terms will be effective upon you receiving an email from us describing the change.~~

~~7.3 Termination. If you breach any of the provisions of these Terms, you will have thirty (30) days after written notice from us to cure such defect.~~

7. ~~7.4~~ Additional Provisions

7.1 SMS Messaging and Phone Calls. Certain portions of the Services may allow us to contact you via telephone or text messages. You agree that the Company may contact you via telephone or text messages (including by an automatic telephone dialling system) at any of the phone numbers provided by you or on your behalf in connection with your use of the Services, including for marketing purposes. You understand that you are not required to provide this consent as a condition of purchasing any Offerings. You also understand that you may opt out of receiving text messages from us at any time, [either by texting the word “STOP” to [●] using the mobile device that is receiving the messages, or by contacting [●]]. If you do not choose to opt out, we may contact you as outlined in our Privacy Policy.

7.2 Updating These Terms. We may modify these Terms from time to time in which case we will update the “Last Revised” date at the top of these Terms. If we make changes that are material, we will use reasonable efforts to attempt to notify you, such as by email and/or by placing a prominent notice on the first page of the Website. However, it is your sole responsibility to review these Terms from time to time to view any such changes. The updated Terms will be effective as of the time of posting, or such later date as may be specified in the updated Terms. Your continued access or use of the Services after the modifications have become effective will be deemed your acceptance of the modified Terms. No amendment will apply to a dispute for which an arbitration has been initiated prior to the change in Terms.

7.3 Termination of License [and Your Account]. If you breach any of the provisions of these Terms, all licenses granted by the Company will terminate automatically. Additionally, the Company may suspend, disable, or delete your Account and/or the Services (or any part of the foregoing) with or without notice, for any or no reason. If the Company deletes your Account for any suspected breach of these Terms by you, you are prohibited from re-registering for the Services under a different name. In the event of Account deletion for any reason, the Company may, but is not obligated to, delete any of Your Content. the Company shall not be responsible for the failure to delete or deletion of Your Content. All sections which by their nature should survive the termination of these Terms shall continue in full force and effect subsequent to and notwithstanding any termination of these Terms by the Company or you. Termination will not limit any of the Company’s other rights or remedies at law or in equity.

7.4 Injunctive Relief. You agree that a breach of these Terms will cause irreparable injury to the Company for which monetary damages ~~will be an adequate remedy~~would not be an adequate remedy and the Company shall be entitled to equitable relief in addition to any remedies it may have hereunder or at law without a bond, other security or proof of damages.

7.5 ~~7.5 Miscellaneous~~ Liquidated Damages. You agree that a breach of these Terms will cause uncertain and difficult to ascertain damages and you also agree that to pay Company two hundred U.S dollars (US\$200.00) for each material breach of these Terms.

7.6 Severability. If any provision of these Terms shall be unlawful, void or for any reason unenforceable, then that ~~will provision shall be deemed severable from these Terms and shall not~~ affect the validity and enforceability of any remaining provisions.

7.7 Assignment. These Terms and the licenses granted hereunder may ~~not~~ be assigned by the Company ~~without your express prior written consent~~, but may not be assigned by you without the prior express written consent of the Company.

7.8 Waiver. No waiver by either party of any breach or default hereunder shall be deemed to be a waiver of any preceding or subsequent breach or default.

7.9 Section Headings. The section headings used herein are for reference only and shall not be read to have any legal effect.

7.10 Where Services are Operated. The Services are operated by us in the United States. Those who choose to access the Services from locations outside the United States do so at their own initiative and are responsible for compliance with applicable local laws.

7.11 Governing Law. These Terms are governed by the laws of the State of ~~Georgia~~ Texas, without regard to conflict of laws rules, and the proper venue for any disputes arising out of or relating to any of the same will be the arbitration venue set forth in Section ~~8~~; [7.12], or if arbitration does not apply, then the state and federal courts located in ~~Boston, Massachusetts~~; Travis County, Texas, or the United States District Court for the Western District of Texas (Austin Division).

7.12 ~~7.6 How to Contact Us.~~ You may contact us regarding the Services or these Terms at: ~~1 Blackaere Drive, Blackaere Alaska 00000, by phone at 555-555-5555 or by email at FakeEmailAddress@BlackaereTeddyBears.com.~~ Arbitration; Class Action Waiver; Venue. Any controversy or claim ("Claim") you have arising out of or relating to these Terms shall be resolved by a single impartial arbitrator pursuant to proceedings administered by the American Arbitration Association under its rules for resolution of commercial disputes. Any such Claim shall be brought solely by you as an individual and not as part of, or as a representative of, a class. The arbitration shall be held in Austin, Texas. All submissions to the arbitrator, the proceedings and the award shall be confidential. The arbitrator's award shall be final and binding. The courts of the State of Texas and/or the United States District Court for the Western District of Texas (Austin Division) shall have exclusive jurisdiction and venue over (i) any action concerning the enforcement of an arbitration award, or (ii) if arbitration is not permitted by law, then any Claim you have arising out of or relating to these Terms. You agree to unconditionally and irrevocably submit to the exclusive jurisdiction and venue of such courts and you will not object to such jurisdiction and venue on the grounds of lack of personal jurisdiction or inconvenient forum. EACH PARTY IRREVOCABLY WAIVES ANY AND ALL RIGHT TO TRIAL BY JURY IN ANY LEGAL PROCEEDING ARISING OUT OF OR RELATED TO THESE TERMS.

Neither party consents or agrees to any arbitration on a class or representative basis, and the arbitrator shall have no authority to proceed with an arbitration on a class or representative basis. No arbitration will be consolidated with any other arbitration proceeding without the consent of all parties. Any claim or controversy as to the enforceability of this arbitration provision's restriction on your right to participate in or pursue a class action or class wide arbitration shall be brought only in the United States District Court for the Western District of Texas (Austin Division) or any State court located in Travis County, Texas.

7.13 Personal Account Security and Misappropriation Safe Harbor. If you are required to register an account and select a unique login and password (“Personal Login Information”) to access certain features of the Services, including uploading user-generated images or descriptions, you must keep your Personal Login Information strictly confidential. You are responsible for taking all appropriate security measures to maintain this confidentiality, including logging off and closing your internet browser when utilizing public or unsecure networks. Your Personal Login Information is strictly personal to you, and you may not permit any third party to access or use your account under any circumstances. Blackacre Teddy Bears, LLC shall not be liable for any claims, costs, losses, or harm caused by or related to the theft, misappropriation, disclosure, or unauthorized use of your Personal Login Information. You must contact the Company immediately at the coordinates provided in Section 7.13 if you become aware of, or have reasonable grounds to suspect, any unauthorized access to or compromise of your account.

7.14 Comprehensive Advertising and Referral Disclaimers. The Services may contain third-party banner advertisements, sponsored showcase sections, and direct outbound hyperlink referrals operated on behalf of external toy manufacturing companies and content partners. The placement or inclusion of any advertisement, creation display, or third-party storefront link on our Website does not imply, express, or constitute an endorsement, approval, or validation by Blackacre Teddy Bears, LLC of the advertised products, services, corporate entities, or manufacturing specifications. The Company assumes no responsibility, control, or legal liability for any discrepancies, product-mismatches, counterfeit goods, financial loss, or damage of any kind incurred by you as a direct or indirect result of the presence of such advertisements or the subsequent execution of transactions on external domains. You acknowledge and agree that you are solely and entirely responsible for any correspondence, data exchange, or commercial transactions you execute with third-party advertisers or external sellers.

7.15 Integration of Separate Policies and Click-Through Agreements. The Blackacre Teddy Bears, LLC Privacy Policy, along with any separate programmatic rules or operational guidelines deployed by the Company from time to time, are hereby incorporated into and made a binding part of these Terms by this express reference. Before accessing or using certain interactive segments of the Services, you may be prompted to affirmatively execute an additional contract by selecting a choice matrix marked “I Accept,” “I Agree,” “Consent,” or through actions that similarly manifest active consent (each a “Click-Through Agreement”). To the extent that a direct conflict arises between the provisions of these general Terms of Service and any specific Click-Through Agreement or incorporated policy required for a discrete platform activity, the terms of the applicable Click-Through Agreement shall govern and control the legal relationship.

7.16 How to Contact Us. You may contact us regarding the Services or these Terms at: [PHYSICAL ADDRESS], by phone at 555-555-5555 or by email at FakeEmailAddress@BlackacreTeddyBears.com .

7.17 California Residents. If you are a California resident, in accordance with Cal. Civ. Code § 1789.3, you may report complaints to the Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs by contacting them in writing at 1625 North Market Blvd., Suite N 112 Sacramento, CA 95834, or by telephone at (800) 952-5210.